



IN THE NATIONAL COMPANY LAW TRIBUNAL BENCH, AT MUMBAI,
COURT V

CP (CAA) 125 / MB / 2024
in
CA (CAA) 82 / MB / 2024

In the matter of the Companies Act, 2013;

AND

*In the matter of Sections 230 to 232 read
with Section 234 and other applicable
provisions of the Companies Act, 2013
and rules framed thereunder;*

AND

*In the matter of scheme of amalgamation
between BRE Asia Urban Holdings Ltd
(**'Transferor Company'** or **'Non-
Petitioner Company'**) and Horizon
Industrial Parks Private Limited
(**'Transferee Company'** or **'Petitioner
Company'**) and their respective
shareholders (hereinafter referred to as
the **'Scheme'** or **'Scheme of
Amalgamation'**)*

Horizon Industrial Parks Private Limited, a)
private company incorporated under the)
Companies Act, 1956 and having its registered)
office address at One World Centre, Unit No)
1501B, Tower 1, 841, Jupiter Textile Mills,)
Senapati Bapat Marg, Mumbai - 400013,)





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Maharashtra, India

CIN: U60231MH2009PTC222156

... Petitioner Company /
Transferee Company

BRE Asia Urban Holdings Ltd, a company)
incorporated in Mauritius and having its)
registered office address at Level 6, Tower A, 1)
Exchange Square, Wall Street, Ebene, Mauritius)
Company Number: 150160 C1 / GBL

... Non-Petitioner Company /
Transferor Company

Order dated : 11.12.2024

Coram:

Hon'ble Reeta Kohli, Member (Judicial)
Hon'ble Madhu Sinha, Member (Technical)

Appearance:

For the Petitioner: Mr. Hemant Sethi a/w Ms. Devanshi Sethi, Ms.
Tanaya Sethi, i/b Hemant Sethi, Advocates

For the Regional Director (WR): Rujuta Bankar, ICLS, AD, O/o
Regional Directorate (Western Region)





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ORDER

1. Heard the Learned Counsel for the Petitioner Company. No objector has come before this Hon'ble National Company Law Tribunal, Mumbai Bench (**'Tribunal'**) to oppose the Scheme and nor has any party controverted any averments made in the Company Scheme Petition to the said Scheme.
2. The sanction of this Tribunal is sought under Section 234 read with Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (**'Act'**) to the said Scheme of Amalgamation between Horizon Industrial Parks Private Limited (**'Non-Petitioner Company'** or **'Transferee Company'**) and BRE Asia Urban Holdings Ltd (**'Petitioner Company'** or **'Transferor Company'**) and their respective shareholders (**'Scheme'**).
3. The Petitioner Company has approved the Scheme by passing the Board Resolution at its board meeting held on February 16, 2024, have unanimously approved the Scheme and the copies of the board resolutions are annexed and marked as **'Annexure E1** and **E2'** respectively from Page No. 231 to 236 of Volume II of the Company Scheme Petition.
4. The Appointed Date of the Scheme is April 1, 2024
5. The Learned Counsel for the Petitioner Company further submits that the Petitioner Company is primarily engaged in the business of development and lease of industrial and logistics spaces.
6. The Learned Counsel for the Petitioner Company submits that the rationale of the Scheme is as follows:





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The Transferor Company and the Transferee Company are part of the same group.

The amalgamation will:

- i) *consolidate the business operations, encompassing the investee companies of the Transferor Company engaged in the business of constructing and renting, with the business of the Transferee Company to achieve greater economies of scale, operational rationalization and organizational efficiency, wider market reach and customer base, pooling of knowledge and expertise, and to reduce redundant costs;*
- ii) *aim towards creation of a single unified entity with a wider and stronger capital and asset base, having greater capacity for conducting its operations more efficiently and competitively; and*
- iii) *simplify decision making, reduce duplication of administrative responsibilities and regulatory compliances.*

This Scheme is expected to be in the best interest of and will not adversely affect the rights and interests of, the shareholders, creditors, employees and all other stakeholders.

7. The Learned Counsel for the Petitioner Company further submits that the present Company Scheme Petition is filed in consonance with Section 234 and Section 230-232 of the Companies Act, 2013 and in terms of order pronounced on June 14, 2024 in CA(CAA)/82/MB/2024.





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8. Learned Counsel appearing on behalf of the Petitioner Company has stated that the Petitioner Company has complied with all requirements as per directions of this Tribunal and it has made requisite filings to demonstrate compliance with this Tribunal. Moreover, the Petitioner Company undertakes to comply with all the statutory requirements, if and to the extent applicable, as may be required under the Companies Act, 2013 and the rules made thereunder. The said undertaking is accepted.
9. The Regional Director (Western Region), Ministry of Corporate Affairs, Mumbai ('RD'), has filed a Report dated September 24, 2024 ('Report') *inter-alia* with this Hon'ble Tribunal. The observations of the RD in the Report and the reply of the Petitioner Company in their affidavit in response dated September 25, 2024 are mentioned hereinbelow: -

Para	Observation by the Regional Director	Undertaking of the Petitioner Company / Rejoinder
2 (a) (i)	That the ROC, Mumbai Report in his report dated 17.09.2024 has stated that no inquiry, inspection, investigation and prosecution is pending against the subject applicant companies.	In so far as observation made in sub-clause (i) of sub-paragraph (a) of paragraph 2 of the Report is concerned, the Petitioner Company submits that this observation made by the ROC is merely factual in nature.
2(a)	NCLT vide order dated	In so far as the observations made in





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(ii)	14.06.2024	has directed the applicant companies to circulate notice to following regulators apart from MCA. a. RBI b. Income Tax Authorities c. Nodal Authority in the Income Tax Department d. GST However, company has submitted proof of dispatch and not delivery nor Applicant Companies has not submitted Acknowledgement of the same to ROC.																				
sub-clause (ii) of sub-paragraph (a) of paragraph 2 of the Report is concerned, the Petitioner Company submits that the copies of the notices details of dispatch and receipt as follows:																						
<table><tr><th>Name of the authority</th><th>Mode of delivery / Tracking number</th><th>Dated of dispatch</th><th>Dated of delivery</th></tr><tr><td>Reserve Bank of India</td><td>Speed post having tracking number EM716907211IN</td><td>June 18, 2024</td><td>June 19, 2024</td></tr><tr><td>Jurisdictional Income-tax department</td><td>Speed post having tracking number EM716907208IN</td><td>June 18, 2024</td><td>June 20, 2024</td></tr><tr><td>Income-tax Department Nodal Officer</td><td>Hand delivery</td><td>June 18, 2024</td><td>June 18, 2024</td></tr><tr><td>Jurisdictional Goods and service-tax department ('GST')</td><td>Speed post having tracking number for • GST Mumbai (EM716906896IN) • GST Bengaluru (EM716907004IN) • GST Haryana (EM716907106IN) • GST Pune (EM716906998IN)</td><td>June 19, 2024 June 19, 2024 June 19, 2024 June 19, 2024 and returned on June 24, 2024</td><td>June 20, 2024 June 24, 2024 June 24, 2024 June 24, 2024 Email dated June 28, 2024 sent to GST, Pune as the speed post was undelivered</td></tr></table>			Name of the authority	Mode of delivery / Tracking number	Dated of dispatch	Dated of delivery	Reserve Bank of India	Speed post having tracking number EM716907211IN	June 18, 2024	June 19, 2024	Jurisdictional Income-tax department	Speed post having tracking number EM716907208IN	June 18, 2024	June 20, 2024	Income-tax Department Nodal Officer	Hand delivery	June 18, 2024	June 18, 2024	Jurisdictional Goods and service-tax department ('GST')	Speed post having tracking number for • GST Mumbai (EM716906896IN) • GST Bengaluru (EM716907004IN) • GST Haryana (EM716907106IN) • GST Pune (EM716906998IN)	June 19, 2024 June 19, 2024 June 19, 2024 June 19, 2024 and returned on June 24, 2024	June 20, 2024 June 24, 2024 June 24, 2024 June 24, 2024 Email dated June 28, 2024 sent to GST, Pune as the speed post was undelivered
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A compliance affidavit dated June 19, 2024 to this effect was duly filed on behalf of the Petitioner Company with the Hon'ble Tribunal vide diary number 2709138045352024/2. Further, copies																						





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2(a) (iii)	As the company is entering into Amalgamation with a Foreign Company pursuant to section 234 of the Companies Act, in-principle prior approval of RBI may be called pursuant to sub section 2 of section 234 of the Companies Act, 2013.	of either hand deliver acknowledgement or email sent or tracking report of the above mentioned authorities is annexed herewith as Annexure A to the response affidavit for RD observations. In so far as the observations made in sub-clause (iii) of sub-paragraph (a) of paragraph 2 of the Report is concerned, the Petitioner Company submits that as per Regulation 9(1) of the Foreign Exchange Management (Cross Border Merger) Regulation, 2018 ('Cross Border Merger Regulations'), the cross border merger undertaken in accordance with the Cross Border Merger Regulations, <u>shall be deemed to have the prior approval of RBI</u> as required under Rule 25A of Companies (Compromises, Arrangement and Amalgamations) Rules, 2016 ('Amalgamation Rules'). In this regard, the Petitioner Company had submitted a declaration ensuring that compliance with Regulation 9(1) of the Cross Border Merger Regulations and therefore by virtue of the same, the
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		Scheme of Amalgamation shall be deemed to have prior approval of Reserve Bank of India as required in Rule 25A of the Amalgamation Rules. Therefore, no further approval from the Reserve Bank of India is required under the instant case. A copy of the certificate dated March 1, 2024 from two directors and the Company Secretary of the Petitioner Company ensuring compliance of Cross Border Merger Regulations is attached as Annexure B to the response affidavit for RD observations.
2(a) (iv)	Company is consistently a Loss making company. Company has reported loss amounting to Rs. 144 Cr for the FY 2021-2022 and Rs. 70 Cr in the FY 2022-2023. The Company in its Annual return filed for the FY 2022- 2023 has stated that the Net Worth of the Company	In so far as observation made in sub-clause (iv) of sub-paragraph (a) of paragraph 2 of the Report is concerned, the Petitioner Company submits it has successfully reduced its losses from Rs 144 crores in FY 2021-22 to Rs 70 crores in FY 2022-23. Furthermore, the Company is expected to continue this trend, with further reductions projected for FY 2023-24. Further, the net-worth of the Petitioner Company is positive and the Scheme of Amalgamation is approved by the members and





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	is Appx Rs. 357 Crores only.	creditors.
2(a) (v)	As per the provisions of Section 230(3)(1) of the Companies Act, 2013, where the transferor company is dissolved, the fee, if any, paid by the transferor company on its authorized capital shall be set-off against any fees payable by the Transferee Company on its authorized capital subsequent to the amalgamation. Therefore, remaining fee, if any after setting off the fees already paid by the transferor company on its authorized capital, must be paid by the transferee company on the increased authorized capital	In so far as observation made in sub-clause (v) of sub-paragraph (a) of paragraph 2 of the Report is concerned, the Petitioner Company submits that the Transferor Company is a Mauritius based company and consequently, the merger of authorised share capital of the Transferor Company with the Transferee Company is not applicable pursuant to this Scheme of Amalgamation. Hence, the compliance with the provisions of proviso' of sub-section 3 of Section 232 of the Companies Act, 2013 is not applicable in the instant case





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	subsequent to the amalgamation.	
2(a) (vi)	May be decided on its merits.	In so far as observation made in sub-clause (v) of sub-paragraph (a) of paragraph 2 of the Report is concerned, the Petitioner Company submits that this observation made by the ROC is merely factual in nature.
2(b)	In compliance of AS-14 (IND AS-103), the Petitioner Companies shall pass such accounting entries which are necessary in connection with the scheme to comply with other applicable Accounting Standards such as AS-5 (IND AS-8) etc.	In so far as observation made in sub-paragraph (b) of paragraph 2 of the Report is concerned the Petitioner Company hereby undertakes and confirms that it shall pass the necessary accounting entries in its books of accounts to give effect to the Scheme in compliance with the applicable accounting standards prescribed under Section 133 of the Companies Act, 2013 and Clause 11 of the Scheme. Certificate to this effect has been procured from M/s Walker Chandiok & Co. LLP, statutory auditors of the Petitioner Company on February 05, 2024.
2(c)	The Hon'ble NCLT may kindly direct to the Petitioner Companies	In so far as observation made in sub-paragraph (c) of paragraph 2 is concerned the Petitioner Company





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	to file an affidavit to the extent that the Scheme enclosed to the Company Application and Company Petition are one and same and there is no discrepancy or no change is made.	hereby confirms that the Scheme enclosed in the company scheme application and the Scheme enclosed in the company scheme petition are one and the same and there is no discrepancy or deviation and no change is made.
2(d)	The Petitioner Companies under provisions of section 230(5) and 234 of the Companies Act, 2013 read with Rule 25A of the Companies (Compromise, Arrangement & Amalgamation) Rule, 2016 have to serve notices to concerned authorities which are likely to be affected by the amalgamation or arrangement. Further, the approval of the scheme by this Hon'ble Tribunal may not deter	In so far as the observation made in sub-paragraph (d) of paragraph 2 of the Report is concerned, the Petitioner Company confirms that it has served notices along with copy of the Scheme upon: - (i) the Central Government through the office of Regional Director, (Western Region), Ministry of Corporate Affairs, Mumbai; (ii) the jurisdictional Registrar Companies; (iii) the Income Tax Authority within whose jurisdiction the Applicant Company is assessed to tax; Income Tax Central Revenue Building, Central Circle 1(3), Building, 1, Queens Rd, Shivaji Nagar, Bengaluru, Karnataka - 560001;





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	such authorities to deal with any of the issues arising after giving effect to the scheme. The decision of such Authorities is binding on the petitioner companies concerned.	(iv) the Reserve Bank of India; (v) the Nodal Officer of Income Tax Department to Pr. CCIT, Mumbai at 3rd Floor, Aayakar Bhawan, Maharishi Karve Road, Mumbai – 400020, Maharashtra; and (vi) the jurisdictional Goods and Service Tax Department; in accordance with Section 230(5) of the Act and as directed by the Hon'ble Tribunal vide its order dated June 14, 2024. A compliance affidavit dated June 19, 2024 to this effect was duly filed on behalf of the Petitioner Company with the Hon'ble Tribunal vide diary number 2709138045352024/2. The Petitioner Company also confirms that if any such authority issues any direction to the Petitioner Company after the Scheme becomes effective, then such directions shall be dealt with in accordance with the applicable laws.
2(e)	As per Definition of the Scheme,	In so far as observation made in sub-paragraph (e) of paragraph 2 of the Report is concerned the Petitioner





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	‘Appointed Date’ means April 1, 2024 or such other date as may be fixed or approved by the NCLT. ‘Effective Date’ means the last of the dates on which all the conditions and matters referred to in Clause 17 hereof have been fulfilled or such other date as may be fixed or approved by the NCLT or other Appropriate Authority. References in this Scheme to the date of ‘coming into effect of this Scheme’ or ‘effectiveness of this Scheme’ shall mean the Effective Date; In this regard, it is	Company submits that the Report itself states that the Appointed Date and Effective Date have been duly defined in the Scheme. Further, the Petitioner Company clarifies that the company scheme application was filed on April 30, 2024 and that they have duly complied with the requirements set out in circular no. F. No. 7/12/2019/CL-I dated 21.08.2019 issued by the Ministry of Corporate Affairs. A copy of the filing receipt of the company scheme application is attached as Annexure C to the response affidavit for RD observations.
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	submitted that Section 232 (6) of the Companies Act, 2013 states that the scheme under this section shall clearly indicate an appointed date from which it shall be effective and the scheme shall be deemed to be effective from such date and not at a date subsequent to the appointed date. However, this aspect may be decided by the Hon'ble Tribunal taking into account its inherent powers. The Petitioners may be asked to comply with the requirements as clarified vide circular vide circular no. F. No. 7/12/2019/CL-I	
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	dated issued by the Ministry of Corporate Affairs'	
2(f)	Petitioner Companies shall undertake to comply with the directions of the concerned sectoral Regulatory, if so required.	In so far as the observation made in sub-paragraph (f) of paragraph 2 of the Report is concerned, the Petitioner Company undertakes to comply with the sectoral regulations, if any, issued by the directions of the concerned sectoral regulatory in accordance with the law.
2(g)	The Hon'ble Tribunal may kindly seek the undertaking that this Scheme is approved by the requisite majority of members and creditors as per Section 230(6) of the Act in meetings duly held in terms of Section 230(1) read with subsection (3) to (5) of Section 230 of the Act and the Minutes thereof are	In so far as the observations made in sub-paragraph (g) of paragraph 2 of the Report is concerned, the Petitioner Company submit that <i>vide</i> order dated June 14, 2024 passed by the National Company Law Tribunal, Mumbai Bench in CA(CAA) / 82 / MB / 2024, (' Order ') the meetings of shareholders and secured and unsecured creditors were dispensed with in view of the consent affidavits filed by all the shareholders, the sole secured creditor and 92.22% of the unsecured creditor of the Petitioner Company. Hence, the question of convening the meeting





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	duly placed before the Tribunal.	does not arise.
2(h)	The Petitioner Company states that the Transferee Company shall be in compliance with provisions of Section 2(1B) of the Income Tax Act, 1961. In this regards, the petitioner company shall ensure compliance of all the provisions of Income Tax Act and Rules thereunder applicable in this matter.	In so far as the observations made in sub-paragraph (h) of paragraph 2 of the Report is concerned, the Petitioner Company undertake and confirm that it shall ensure compliance with the provisions of section 2(1B) of the Income Tax Act, 1961.
2(i) and (j)	(i) It is observed that the Transferor Company is a foreign company therefore, the petitioner company may be directed to place on record the prior approval of RBI under section 234 of the Companies Act,	In so far as the observations made in sub-paragraph (i) and (j) of paragraph 2 of the Report is concerned, the Petitioner Company submits that as per Regulation 9(1) of the Cross Border Merger Regulations, the cross border merger undertaken in accordance with the Cross Border Merger Regulations, <u>shall be deemed to have the prior approval of RBI</u> as required under





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	2013 and other applicable laws and also may be directed to submit undertaking that all due compliances of RBI guideline / FEMA has been complied with. (i) Petitioner Company may be directed to place on record prior approval of Reserve Bank of India as required under section 234(2) of the Companies Act, 2013 and may also directed to undertake that requirement of FEMA regulations has been complied with by the petitioner company.	Rule 25A of Amalgamation Rules. In this regard, the Petitioner Company re-iterates that a declaration ensuring that compliance with Regulation 9(1) of the Cross Border Merger Regulations is annexed as Annexure B to the response affidavit for RD observations, by virtue of which the Scheme of Amalgamation shall be deemed to have prior approval of Reserve Bank of India as required in Rule 25A of the Amalgamation Rules. Therefore, no further approval from the Reserve Bank of India is required under the instant case.
2(k)	The registered office of the Transferor Company is situated in Mauritius; therefore,	In so far as the observations made in sub-paragraph (b) of paragraph 2 of the Report is concerned, the Petitioner Company submits that the Transferor





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	petitioner company may be directed to do all necessary compliances of Law of Mauritius.	Company will comply with all necessary and applicable provisions of the Applicable Laws in Mauritius.
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10. The observations made by the RD have been explained by the Petitioner Company in Para 9 above. The clarifications and undertakings given by the Petitioner Company are accepted by this Tribunal. The authorized representative of the RD, present at the time of hearing has submitted that the explanation and clarifications given by the Petitioner Company are found satisfactory and they have stated that they have no objection for approving the Scheme by this Hon'ble Tribunal

11. As per clause 10 of the Scheme, upon the Scheme becoming effective and in consideration for the amalgamation of the Transferor Company into the Transferee Company, the Transferee Company shall, without any further act or deed, issue and allot equity shares of INR 10 each as fully paid up to the extent indicated below, to all the ordinary shareholders of the Transferor Company whose names are recorded in the register of members of the Transferor Company on the Record Date in the following proportion. It is clarified that the equity shares shall be issued and allotted under the 'Foreign Direct Investment' route (as set out under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019).





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"40,704 (Forty Thousand Seven Hundred and Four) fully paid up equity shares of the Transferee Company of INR JO (Indian Rupees Ten only) each for every 10,000 (Ten Thousand) ordinary shares of the Transferor Company each fully paid up."

12. From the material on record, the Scheme as annexed and marked as **'Annexure F'** from Page No. 241 to 262 of Volume II of the Company Scheme Petition appears to be fair and reasonable and is not in violation of any provisions of law and is not contrary to public policy.
13. Since all the requisite statutory compliances have been fulfilled, Company Petition CP(CAA)/125/MB/2024 connected with CA(CAA)/82/MB/2024 is made absolute in terms of prayer in the Company Scheme Petition.
14. The Scheme is sanctioned hereby, with the Appointed Date fixed as April 1, 2024.
15. The Petitioner Company is directed to lodge a certified copy of this Order along with a copy of the Scheme with the concerned Registrar of Companies, electronically along with e-Form INC-28, within 30 days from the date of receipt of the order, duly certified by the Designated Registrar of this Tribunal by the Petitioner Company.
16. The Petitioner Company is directed to lodge a certified copy of this Order and the Scheme duly authenticated by the Designated Registrar of this Tribunal, with the concerned Collector / Superintendent of Stamps for adjudication of stamp duty payable, if





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any, within 60 working days from the date of receipt of certified copy of the certified Order from the Registry of this Tribunal.

17. All concerned regulatory authorities to act on a copy of this Order duly certified by the Designated Registrar of this Tribunal along with copy of the Scheme.
18. Any person interested is at liberty to apply to this Tribunal in the above matters for any directions that may be necessary.
19. Ordered Accordingly.

Sd/-

Madhu Sinha
Member (Technical)

Sd/-

Reeta Kohli
Member (Judicial)



Certified True Copy _____
Date of Application 11/12/2024
Number of Pages 20
Fee Paid Rs. 100/-
Applicant called for collection copy on 13/12/2024
Copy prepared on 13/12/2024
Copy Issued on 13/12/2024


Deputy Registrar

National Company Law Tribunal, Mumbai Bench